

## 25STCV23721 25STCV23721

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-15

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Case Number: 25STCV23721 Hearing Date: July 15, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 15, 2026

Case Name: Clickworker.com, Inc. v. Coalition Technologies-SEO-PPC-Web Design

Services Company LLC, et al.

Case No.: 25STCV23721

Matter: Motion to Stay/Dismiss for Forum Non Conveniens

Moving Party: Defendant Coalition Technologies-SEO-PPC-Web Design Services

Company LLC

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted. This action is stayed.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Defendant Coalition Technologies-SEO-PPC-Web Design Services Company LLC seeks to stay or dismiss this action for forum non conveniens, arguing that a forum selection clause between the parties requires litigation in New York City.

"California favors contractual forum selection clauses so long as they are entered into freely and voluntarily, and their enforcement would not be unreasonable." (Am. Online, Inc. v. Superior Court (2001) 90 Cal. App. 4th 1, 11.) A mandatory forum selection clause is generally given effect unless enforcement would be unreasonable or unfair. (Verdugo v. Alliantgroup, L.P. (2015) 237 Cal. App. 4th 141, 147.) "Mere inconvenience or additional expense is not the test of unreasonableness . . . of a mandatory forum selection clause." (Berg v. MTC Elecs. Techs. (1998) 61 Cal. App. 4th 349, 359, internal quotation marks omitted.) A clause is reasonable if it has a logical connection with at least one of the parties or their transaction. (Verdugo v. Alliantgroup, L.P. (2015) 237 Cal. App. 4th 141, 147.) The party opposing enforcement of a forum selection clause ordinarily "bears the 'substantial' burden of proving why it should not be enforced." (Global Packaging, Inc. v. Superior Court (2011) 196 Cal.App.4th 1623, 1633.)

However, "California courts will refuse to defer to the selected forum if to do so would substantially diminish the rights of California residents in a way that violates our state's public policy." (Am. Online, Inc. v. Superior Court (2001) 90 Cal. App. 4th 1, 12.) The party opposing enforcement of a forum selection clause ordinarily "bears the 'substantial' burden of proving why it should not be enforced." (Global Packaging, Inc. v. Superior Court (2011) 196 Cal.App.4th 1623, 1633.) "That burden, however, is reversed when the claims at issue are based on unwaivable rights created by California statutes. In that situation, the party seeking to enforce the forum selection clause bears the burden to show litigating the claims in the contractually-designated forum will not diminish in any way the substantive rights afforded . . . under California law." (Verdugo v. Alliantgroup, L.P. (2015) 237 Cal. App. 4th 141, 147, internal quotation marks omitted.)

Because there is no opposition, the Motion is granted. This action stayed.

Moving party to give notice.